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VARIOUS MOTIONS

The Court

tenders the following tentative decision in the matter 6062 Alcoa Properties L.P. v. Sunflower Mart, LLC, et al., Los Angeles County Superior Court case number 25STCV10510, set for hearing on May 20, 2026. Moses Babazadeh, David Baradaran, and Pedram Yadidsion (collectively, Defendants) move for an order quashing the deposition subpoenas for the production of business records served on third parties East West Bank and Wallis Bank by 6062 Alcoa Properties L.P. (Plaintiff) pursuant to Code of Civil Procedure sections 1985.3 and 1987.1. Plaintiff opposes the motion. Separately, Plaintiff moves for orders compelling further responses to its requests for production, set one (RFPs), and special interrogatories, set one (SPROGs), and deeming its requests for admissions, set one (RFAs) admitted. Plaintiff also requests a total \$40,063.18 in sanctions. Defendants' motion is denied. Plaintiff's motions to compel further responses are granted and sanctions are awarded in the partial amount of \$3,573.59. Plaintiff's motion to deem RFAs admitted is denied.

A.

Legal Standard

"If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things . . . at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b) . . . may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other

order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (Code Civ. Proc., § 1987.1, subd. (a).) Any party to the action may make such a motion. (Id., § 1987.1, subd. (b)(1).) “Any consumer whose personal records are sought by a subpoena duces tecum and who is a party to the civil action in which this subpoena duces tecum is served may, prior to the date for production, bring a motion under Section 1987.1 to quash or modify the subpoena duces tecum. Notice of the bringing of that motion shall be given to the witness and deposition officer at least five days prior to production.” (Id., § 1985.3, subd. (g).)

“For discovery purposes, information is relevant if it ‘might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement.’ [Citation]. Admissibility is not the test and information, unless privileged, is discoverable if it might reasonably lead to admissible evidence. [Citation] These rules are applied liberally in favor of discovery.” (Gonzales v. Superior Court (1995) 33 Cal.App.4th 1539, 1546.) “[A] party seeking to compel production of records from a nonparty must articulate specific facts justifying the discovery sought; it may not rely on mere generalities.” (County of Los Angeles v. Superior Court (2021) 65 Cal.App.5th 621, 639 (Los Angeles).) There is a “more limited scope of discovery available from nonparties.” (Ibid.)

“In making an order pursuant to motion made under subdivision (c) of Section 1987 or under Section 1987.1, the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney’s fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive.” (Code Civ. Proc., § 1987.2, subd. (a).)

A party may move for an order compelling further responses to an inspection demand if: (1) a statement of compliance is incomplete; (2) a representation of inability to comply is inadequate, incomplete, or evasive; or (3) an objection is meritless or overly general. (Id., § 2031.310, subd. (a).) Such a motion must set forth specific facts showing good cause justifying the discovery sought and be accompanied by a meet and confer declaration under section 2016.040. (Id., § 2031.310, subd. (b).) A party may also move for an order compelling further

responses to interrogatories if the propounding party deems that responses are incomplete, evasive, contain meritless objections, or improperly exercise the option to produce documents under section 2030.230. (Id., § 2030.300, subd. (a).) Any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further responses is subject to monetary sanctions, unless they acted with substantial justification. (Id., §§ 2030.300, subd. (d), 2031.310, subd. (h).)

B. Discussion

Defendants move to quash deposition subpoenas served on third parties East West Bank and Wallis Bank. Separately, Plaintiff moves to compel further responses to its RFPs and SPROGs and moves for the Court to deem its RFAs admitted. The Court will address each matter in turn.

Defendants' motion to quash is denied.

Defendants move to quash deposition subpoenas served on third parties East West Bank and Wallis Bank by Plaintiff pursuant to Code of Civil Procedure section 1985.3. As a threshold matter, Plaintiff renews its argument that Defendants' motion is procedurally improper because it lacks a separate statement, at least as applied to Wallis Bank. "Any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement." (Rules of Court, rule 3.1345(a).) Here, deposition subpoenas were served upon Defendants requesting records from the relevant third parties. (Prince Decl. ¶ 2.) Defendants responded to these subpoenas with objections. (Id. ¶ 3.) Based on this testimony by Defendants, the present motion involves the content of discovery requests, and a response has already been provided to the requests in the form of objections. Thus, under rule 3.1345(a), the present motion requires a separate statement. However, the separate statement provided by Defendants only addresses the discovery requests propounded upon East West Bank. Accordingly, with respect to Wallis Bank, Defendants' motion to quash is denied.

With respect to East West Bank, Defendants maintain that the document requests infringe on their right to privacy under the California Constitution. (Cal. Const., Art. 1, § 1.) A party asserting a privacy right must "establish a legally protected privacy interest,

an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious.” (Williams v. Superior Court (2017) 3 Cal.5th 531, 552 (Williams).) The party seeking information may then “raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy.” (Ibid.) The Court then balances those competing considerations. (Ibid.)

Defendants must first show that they have a legally protected privacy interest in the information sought by Defendants. Specifically, Plaintiffs assert a privacy interest in banking records. Individuals do have a privacy interest in their confidential financial affairs. (See Overstock.com, Inc. v. Goldman Sachs Group, Inc. (2014) 231 Cal.App.4th 471, 503.) This includes confidential financial information in all forms, including tax returns, checks, statements, and account information. (Ibid.)

Defendants have also demonstrated an objectively reasonable expectation of privacy. A bank customer reasonably expects that absent compulsion through legal process, matters revealed to a bank will only be utilized internally. (Valley Bank of Nevada v. Superior Court (1975) 15 Cal.3d 652, 656.) Here, Defendants possessed that same reasonable expectation in doing business with East West Bank.

Thus, Plaintiff must demonstrate legitimate and important countervailing interests. Here, Plaintiff alleges that Defendants stole rent checks and deposited them into certain entities’ bank accounts. (SAC ¶¶ 38–52.) The sought after records would tend to show whether Defendants then rerouted the money into accounts they control, supporting liability. The accounts would also show whether Defendants exercise control over the entity defendants, providing a basis for Plaintiff’s alter ego allegations. The records are not sought merely as pretext to determine Defendants’ financial resources. Thus, the Court finds that Plaintiff has demonstrated legitimate and important countervailing interests. Nor have Defendants presented the Court with feasible alternatives. Accordingly, Defendants’ motion to quash is denied.

Plaintiff seeks sanctions to compensate it for defending against Defendants’ unsuccessful motion to quash. A court may award sanctions if it finds that the motion was made in bad faith or

without substantial justification. (Code Civ. Proc., § 1987.2, subd. (a).) The Court makes no such finding here. While unsuccessful in their opposition, Defendants raised reasonable objections to the subpoenas based on their constitution privacy rights. Thus, the Court does not award sanctions.

Plaintiff's motions to compel further responses to RFPs and SPROGs are granted.

Plaintiff moves to compel Defendants and DPM Property Management LLC and Sunflower Mart, LLC (collectively, Defendants hereafter) to provide further verified responses to its RFPs. Plaintiff served the relevant discovery on January 15, 2026. (Shmidt Decl. ¶ 2.) Defendants served objections on February 3. (Id. ¶ 3.) Defendants finally served unverified responses on March 13. (Id. ¶ 6.) On March 24, Defendants agreed to provide verified responses by April 3. (Id. ¶ 7.) However, as of May 27, Defendants had still failed to provide verifications. (Id. ¶ 11.)

Responses to discovery shall be verified under oath unless they contain only objections. (Code Civ. Proc., § 2031.250, subd. (a).) Unsworn responses are tantamount to no responses. (Appleton v. Superior Court (1988) 206 Cal. App. 3d 632, 636.) Additionally, objections are waived if not lodged within the initial responses to interrogatories. (Scottsdale Insurance Co. v. Superior Court (1997) 59 Cal.App.4th 263, 273.) Here, Defendants did not provide verifications to their responses. Additionally, their objections to SPROGs 7 and 10 were improperly raised for the first time after initial responses were provided. Thus, Plaintiff's motions to compel further verified responses to RFPs and SPROGs are proper. However, Defendants are not required to amend the substance of their responses to comport with Plaintiff's version of events; they must merely verify that their statements are truthful. Accordingly, Plaintiff's motions to compel further responses are granted in part.

Plaintiff additionally requests the imposition of sanctions. Sanctions are warranted where a party unsuccessfully opposes a motion to compel further responses. (Code Civ. Proc., §§ 2030.300, subd. (d), 2031.310, subd. (h).) An opposition may be deemed unsuccessful even where no opposition brief is filed. (Rules of Court, rule 3.1348(a).) But sanctions are improper if the Court finds that the party had substantial justification for opposing the motion or if circumstances would

make the imposition of sanctions unjust. (Code Civ. Proc., §§ 2030.300, subd. (d), 2031.310, subd. (h).)

Here, sanctions are warranted because Defendants unsuccessfully opposed the motions to compel further responses without substantial justification. Plaintiff's counsel alleges 8.4 hours of attorney time at an \$800 hourly rate, 29.2 hours at a \$680 hourly rate, and 16.4 hours at a \$600 hourly rate. (Shmidt Decl. ¶¶ 13–14.) Counsel further alleges 5 hours spent drafting replies at a blended \$700 hourly rate, for a total sanctions request of \$39,916. (Id. ¶¶ 15–16.) Additionally, counsel alleges \$147.18 in filing fees, including replies. (Id. ¶ 17.)

Many reductions are appropriate. No replies were necessary given Defendants' lack of any opposition briefing, so the Court deducts \$3,500 in anticipated attorney's fees and \$73.59 in anticipated costs. Additionally, sanctions are not warranted as to the RFAs motion as discussed post, so the remaining sanctions award is reduced by another third, to \$24,277.33. Finally, such sanctions are grossly disproportionate based on the simplicity of the present motions and counsel's claimed experience. (Id. ¶ 12.) The Court adopts Plaintiff's counsel's blended hourly rate of \$700 and credits counsel with 2.5 hours spent drafting each motion and compiling the accompanying evidence. Accordingly, counsel is awarded \$3,573.59 in sanctions ($[\$700 \text{ per hour}] \times [5 \text{ hours}] + [\$73.59 \text{ in filing fees}] = \$3,573.59$).

Plaintiff's motion to deem RFAs admitted is denied.

Plaintiff further moves to deem the RFAs propounded on Defendants admitted. Such a motion is proper where the party to whom RFAs are directed fails to serve a timely response. (Code Civ. Proc., § 2033.280.) Such is not the case here. While unverified responses are tantamount to no response at all for the sake of compelling further responses, they do constitute a response. Thus, Plaintiff may not move to deem RFAs admitted but may move to compel further responses to RFAs pursuant to section 2033.290. They have not done so, and thus Plaintiff's motion is denied.

Conclusion:

The Court denies

Defendants' motion to quash. The Court grants Plaintiff's motions to compel further responses to RFPs and SPROGs and awards Plaintiff \$3,573.59 in sanctions. The Court denies Plaintiff's motion to deem RFAs admitted.